

Amrish George Frederick v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 January 2020 · Writ-C No. 266 of 2020 · WRIT - C No. 266 of 2020 · Writ disposed; petitioner to appear before EE; s.127 left open.

HEADNOTE

A consumer challenged a 14 November 2019 recovery citation as coercive action without hearing and without following the U.P. Electricity Supply Code, 2005. The Division Bench did not quash the citation. It directed the petitioner to appear before the Executive Engineer with objections, required a speaking final order within four weeks, stayed coercive action for a short period, and left any challenge to the final order to an appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Amrish George Frederick petitioned the Allahabad High Court to quash a recovery citation dated 14 November 2019 issued by the electricity department. He alleged that the respondents were taking coercive action without an opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. After an adjournment on 7 January 2020 for the department to take instructions, the Division Bench heard the petition on 10 January 2020.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

writ challenge to recovery citation relegated to speaking order and s.127 appeal

HOLDING

The Court disposed of the writ without deciding the validity of the recovery citation. It directed the petitioner to appear before the Executive Engineer on 28 January 2020 with his objection and evidence; the Engineer was to pass a speaking and reasoned final order within four weeks. Coercive action was stayed for seven weeks or until disposal of the representation, whichever earlier, with automatic vacation on default and automatic revival of the citation on non-appearance. If aggrieved by the final order, the petitioner was left to an appeal under Section 127 of the Electricity Act, 2003. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the petitioner's objections to the recovery citation, the Court left any challenge to that order to an appeal under Section 127 and did not decide the citation on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION DATED 14 NOVEMBER 2019 VIOLATED THE U.P. ELECTRICITY SUPPLY CODE, 2005

The petitioner alleged non-compliance and want of hearing; the Court did not examine those contentions on merits. ¶ 1

NOT DECIDED — MERITS OR QUANTUM OF THE RECOVERY SOUGHT UNDER THE IMPUGNED CITATION

¶ 1